

MPEP Post-Revision Update Register

Working consolidation of USPTO changes after the January 31, 2024 MPEP currentness cutoff

This register is a navigation and issue-spotting aid. The official source linked in each row controls. The July 2026 USPTO Subsequent Publications PDF is the principal agency index through July 20, 2026; the final row adds the August 2026 DOCX/Patent Center process notice as a post-cutoff supplement.

Date	Category	Authority / title	Citation / type	Effective	MPEP status	Project relevance	Official source
2024-02-27	Patent notice/guidance	Updated Guidance for Making a Proper Determination of Obviousness	89 FR 14449 + examiner memorandum	2024-02-27	Post-cutoff; future-MPEP candidate	High - 103 obviousness analysis	Official link
2024-03-18	Patent notice/guidance	Resources for Examining Means-Plus-Function and Step-Plus-Function Claim Limitations	89 FR 19817 + examiner memorandum	2024-03-20 notice	Post-cutoff; future-MPEP candidate	Critical - Claim 1 'lethal means'	Official link
2024-03-22	Patent rule	Signature Requirements Related to Acceptance of Electronic Signatures for Patent Correspondence	89 FR 20321 + memorandum/examples	2024-03-22	Post-cutoff rule	Low/filing administration	Official link
2024-03-29	Patent rule	Electronic Submission of Federal Circuit Appeal/Judicial Review Notices	89 FR 22084	2024-03-29	Post-cutoff rule	Low	Official link
2024-05-03	Patent rule	Adoption of Updated WIPO Standard ST.26; Revision to Incorporation by Reference	89 FR 36677	2024-07-01	Post-cutoff rule	Low unless sequence listings	Official link
2024-06-12	PTAB rule	Pre-Issuance Internal Circulation and Review of PTAB Decisions	89 FR 49808	2024-07-12	Post-cutoff rule	Low	Official link
2024-09-18	PTAB rule	Motion To Amend Practice in AIA Trial Proceedings	89 FR 76421	2024-10-18	Post-cutoff rule	Low	Official link
2024-10-01	PTAB rule	Director Review of PTAB Decisions	89 FR 79744	2024-10-31	Post-cutoff rule	Low	Official link
2024-10-10	PTAB rule	Expanding Opportunities To Appear Before PTAB	89 FR 82172	2024-11-12	Post-cutoff rule	Low	Official link
2024-11-20	Patent rule	Setting and Adjusting Patent Fees During FY2025	89 FR 91898; correction 90 FR 3036	2025-01-19	Post-cutoff rule	Medium - filing/prosecution budget	Official link
2024-04-11	Practice guidance	Guidance on Use of Artificial Intelligence-Based Tools in Practice Before USPTO	89 FR 25609	2024-04-11	Post-cutoff guidance	High - AI-assisted drafting/use	Official link
2024-07-17	Eligibility guidance	2024 Guidance Update on Patent Subject Matter Eligibility, Including on Artificial Intelligence	89 FR 58128 + 2024 AI SME examples + memorandum	2024-07-17	Post-cutoff guidance	High - recognition/AI claims	Official link
2025-01-14	MPEP superseding memo	Revised Form Paragraphs for Design Patents and Applications	TC 2900 memorandum	2025-01-14	Explicitly supersedes portions of current MPEP	Low	Official link
2025-01-17	MPEP superseding memo	Revised/New Form Paragraphs re FY2025 Patent Fees	examiner memorandum	2025-01-17	Explicitly supersedes portions of current MPEP	Medium	Official link
2025-06-10	Patent rule	Discontinuation of Accelerated Examination Program for Utility Applications	90 FR 24324	2025-07-10	Post-cutoff rule	Medium - prosecution planning	Official link
2025-07-08	Patent rule	2025 Increase of Annual Limit on Accepted Requests for Prioritized Examination	90 FR 29990	2025-07-08	Post-cutoff rule	Medium - Track One planning	Official link
2025-08-04	Eligibility guidance	Reminders on evaluating subject matter eligibility under 35 USC 101	examiner memorandum	2025-08-04	Post-cutoff guidance	High - AI/recognition claims	Official link
2025-09-11	Electronic filing guidance	Updated Legal Framework for Patent Electronic System	90 FR 44050	2025-09-11	Post-cutoff guidance	Medium - filing workflow	Official link
2025-10-24	MPEP superseding memo	PE2E Similarity Search guidance	examiner memorandum	2025-10-24	Explicitly supersedes portions of current MPEP	Medium - examination search practices	Official link
2025-10-24	MPEP superseding memo	False assertions/certifications of entity status	examiner memorandum	2025-10-24	Explicitly supersedes portions of current MPEP	Medium - fee/entity compliance	Official link
2025-11-28	Inventorship guidance	Revised Inventorship Guidance for AI-Assisted Inventions	90 FR 54636	2025-11-28	Post-cutoff guidance; rescinds Feb. 2024 AI inventorship guidance	High - AI use + conception record	Official link
2025-12-04	Eligibility guidance	Subject Matter Eligibility Declarations	examiner memorandum	2025-12-04	Post-cutoff guidance	Medium	Official link

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2025-12-05	MPEP superseding memo	Advance notice of change to MPEP in light of Ex Parte Desjardins	examiner memorandum	2025-12-05	Explicitly supersedes portions of current MPEP	High - technological-improvement arguments	Official link
2026-03-20	Patent rule	Required Use by Foreign Applicants and Patent Owners of a Patent Practitioner	91 FR 13510	2026-07-20	Post-cutoff rule	Low unless foreign applicant/owner	Official link
2026-03-13	Design eligibility guidance	Supplemental Guidance for Computer-Generated Interfaces and Icons	91 FR 12394	2026-03-13	Post-cutoff guidance	Low for utility filing	Official link
2026-04-30	Eligibility guidance	Best Practices for Submission of Rule 132 Subject Matter Eligibility Declarations (SMEDs)	memorandum	2026-04-30	Post-cutoff guidance; supersedes Dec. 4 best-practices memo	Medium - future prosecution	Official link
2026-06-24	Patent rule	Conditions for Additional Information and Fee in Petitions Based on Unintentional Delay	91 FR 37826	2026-08-13	Post-cutoff rule	Low/administrative	Official link
2026-07-17	Examiner memo	Requirement for Foreign Applicants to use Patent Practitioner - implementation	examiner memorandum + examples	2026-07-20	Post-cutoff guidance	Low unless foreign applicant/owner	Official link
2026-08-03	Official Gazette practice notice	Update to Procedure for Filing Patent Applications in DOCX Format through Patent Center	Official Gazette notice (published 2026-09-01)	Aug. 2026 process change	Post-July-20 supplement; MPEP 502.05 pending revision	High - filing workflow / source-format verification	Official link

Watchlist exclusion: proposed rules and other non-effective proposals should not be mixed into the effective/current-rule layer. Track them separately until final and effective.